

23NWCV01053 23NWCV01053

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PAM CRAMPTON, et al. vs ROSE HILLS MORTUARY, L.P., A
BUSINESS ENTITY, et al.

CASE NO.: 23NWCV01053

HEARING: September 17, 2026 @ 9:30
a.m.

#3

TENTATIVE ORDER

Defendants Rose Hills Company,
Jose Galvan, Griselda Cabral, Julie Martinez, and Todd Yasuda's Motion for
Order Authorizing Verification of Grave Vault is denied.

Moving party to give notice.

Background

This is a negligence action. On April 5, 2023, Plaintiffs Pam Crampton and Debbie Shuck ("Plaintiffs") filed this action against Defendants Rose Hills Mortuary, L.P., doing business as Rose Hills Memorial Park & Mortuary, PDN, Inc., Jose Galvan, Julie Martinez, Anita Stanchev, Griselda Cabral, Todd H. Yasuda, and Does 1 to 100. The Complaint arises out of Plaintiff's "for injuries resulting from the movement of their deceased father's remains, and/or headstone, and the subsequent cover up." (Compl., ¶ 1.) Specifically, the Complaint alleges that decedent, Paul Crampton, (hereinafter, "Decedent") was "(1) buried elsewhere at ROSE HILLS; (2)

moved at some point in time to a different location at ROSE HILLS without any notice or consent (as evidenced by both the visible damage to his headstone and the fact that his headstone flower urn is now uncentered); (3) not buried at all, and instead was wrongfully cremated without any notice or consent, (4) initially buried then wrongfully disinterred and cremated without any notice or consent or (5) buried with other individuals without any notice or consent. " (Compl., ¶ 43.)

The Complaint alleges the following causes of action: 1) Negligence, 2) Negligent Misrepresentation, 3) Intentional Misrepresentation, 4) Concealment, 5) Intentional Infliction of Emotional Distress, and 6) Breach of Contract.

Defendants

Rose Hills Company (erroneously sued as Defendant Rose Hills Mortuary, L.P.), Jose Galvan, Griselda Cabral, Julie Martinez, and Todd Yasuda (hereinafter, "Defendants") now move for an order "authorizing verification of grave vault" pursuant to Health and Safety Code sections 7525 and 7526.

No opposition has been filed as of September 16, 2026.

Legal Standard

"The remains of a deceased person may be removed from a plot in a cemetery with the consent of the cemetery authority and the written consent of one of the following in the order named:

(a) The surviving spouse.

(b) The surviving children.

(c) The surviving parents.

(d) The surviving brothers or sisters."

(Health & Saf. Code, § 7525.)

“If the required consent can not be obtained, permission by the superior court of the county where the cemetery is situated is sufficient.” (Health & Saf. Code, § 7526.)

The Court notes that section 7526 was recently amended by A.B. 2331 on July 13, 2026 to state the following: “If the required consent cannot be obtained, permission by the superior court of the county where the cemetery is situated is sufficient. A court shall grant an application upon a showing of good cause.”

“[E]ach case involving disinterment must be considered in equity on its own merits.” (Maffei v. Woodlawn Memorial Park (2005) 130 Cal.App.4th 119, 124, internal citations and quotations omitted.) “Each case decided under section 7256 must be decided on its own merits based on the particular circumstances involved.” (Id. at p. 125.) “However, there is a well-established presumption against removing the remains of a deceased person, i.e., against disturbing “the repose of the dead.” (Ibid.) This presumption governs unless the petitioner seeking removal and reinterment presents “strong and convincing evidence showing that it would be unreasonable to refuse to make such a decree.” (Id. at p. 126.)

Discussion

Defendants request that the Court permit Defendant Rose Hills Company (hereinafter, “Rose Hills”) to “verify that the “5TS Oxford Copper” Vault (“Vault” -- attached as Exhibit A to the Nordschow Declaration), which was used for the interment of Decedent Paul Crampton (“Decedent”) on August 5, 1998 at Medallion Lawn, Lot 523, Grave 1 (the “Subject Grave”).” (Mot., 2:12-15.)

Defendants explain that Plaintiffs have refused to authorize Rose Hills to open the Subject Grave to confirm the presence of the Vault. (Nordschow Decl., ¶ 4; Doty Decl., ¶ 2.) Defendants argue that they need to inspect the vault in order to evaluate Plaintiff’s claims against them—specifically, if the Vault is secure and intact, then Plaintiffs’ claims that Defendants moved the Decedent’s remains would be defeated. Defendants imply that that alternative of opening the Vault

(not merely digging up and inspecting the Vault), would be dangerous and emotionally disturbing to all parties involved. (Nordschow Decl., ¶ 4.)

Defendants assert that Rose Hills has a protocol in place to safely verify that Decedent's Vault remains in its original location and has not been opened following interment. (Nordschow Decl., ¶ 5.)

No opposition has been filed.

The Court is not persuaded that it has the authority to order verification of the Vault pursuant to the Defendants' cited Health and Safety Code sections. A petition under Health and Safety Code sections 7525 and 7526 are generally used to obtain the court's permission to remove and reinter a decedent's remains. Those provisions are silent as to whether a court has authority to permit analysis/verification of a grave vault, which does not involve removal of remains.

The Court finds that this dispute involves Defendants' right to certain discovery. Defendants acknowledges that this Motion "also constitutes a motion to compel plaintiffs to cooperate in discovery." (Mot., p. 5., fn. 2.) The Court encourages the parties to come to an informal agreement regarding this issue.

Accordingly, Defendants' Motion for Order Authorizing Verification of Grave Vault is denied.